Submission to the Joint Standing Committee on Electoral Matters Inquiry into all aspects of the 2025 federal election and related matters

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Overview

This submission is made in a private capacity. It is my 5th submission to JSCEM cyclical election review inquiries; my past contributions were:

- submission #181 to the inquiry into the 2013 election
- submission #64 to the inquiry into the 2016 election
- submission #113 to the inquiry into the 2019 election
- submission #348 to the inquiry into the 2022 election

In addition, my submission #L141 in 2021 to the Western Australian Ministerial Expert Committee on Electoral Reform had some influence on that Committee's recommendations and the subsequent reform to the WA Legislative Council electoral system.

The largest focus of my contributions over the past decade or more has been about the composition of parliament by means of their electoral systems – a subject matter specifically raised in the Minister's reference to this inquiry. I will focus on that in this submission, but also address a few other matters.

I have considerable professional experience in what I write about, including several years as senior advisor to an independent ACT MLA from the mid-1990s, 4 years as the ACT Health Minister's principal adviser, over a decade in managerial roles the Victorian public service including in the VPS executive service, and nearly a decade in policy and advocacy work for a registered charity national NGO. Earlier, until my mid-20s I was a regular temporary employee of the AEC at elections, including once in the role of election day Officer-in-Charge of a polling place.

I established the OnElections site in 2016. It contains a wealth of material on world electoral systems and history. Through it I commented on electoral systems and elections worldwide actively through to 2020, and much less frequently in the past few years due to pressures of work.

In addition to terms of reference relating to the conduct of the election, the Special Minister of State asked the Committee to consider the interaction with the following:

- *"the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election;*
- *reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic; and*
- *the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate."*

I don't have much to say about the first two points. The 'finance' reforms of early 2025 were – after several years of lead-up debate – rushed inappropriately through Parliament. They delivered a mixture of positive reforms, together with measures that can be accused of incumbency advantaging. They deserve a thorough review.

I made come brief comments on 'truth in advertising' reform in my 2022 submission (p. 6). It is a difficult legal conundrum, but I would like to see some progress made on reducing the worst of outrageous campaigning misconduct, particularly where it concerns the maligning of individuals.

Summary of recommendations

1. The composition of the House is presently fundamentally flawed

Recomendation 1: JSCEM should recommend comprehensive reform of the composition of the House of Representatives at future elections by the adoption of election of members by STV proportional voting.

2. Increasing the length of the House term

Recomendation 2: An attempt to change the Constitution to give the House maximum terms (or fixed terms) of 4 years should not be advised.

3 Fixing the term of the House

Recomendation 3: If there is a mood to advise any form of fixing of the House term, it should be done through a careful compromise, possibly by fixing in legislation the dates for cyclical Senate elections, thereby greatly reducing the attractiveness to the Prime Minister of an arbitrary early House election, but leaving in place the options for an early dissolution resulting from the political relations between the Parliament and the Government.

5. Composition of the Senate

Recomendation 4: Set the number of ACT and NT senators at 3, instead of 2.

Recomendation 5: Fix the 'un-weighted Inclusive Gregory' Senate ballot transfer glitch, before it one day crashes an election through a disputed result.

6. Introducing young voters into the electorate

Recomendation 6: Establish a system of enrolling young Australians to vote from the end of year 10 schooling, and allow them to participate in elections earlier than age 18 should the opportunity arise, and should they wish to.

1. The composition of the House is presently fundamentally flawed

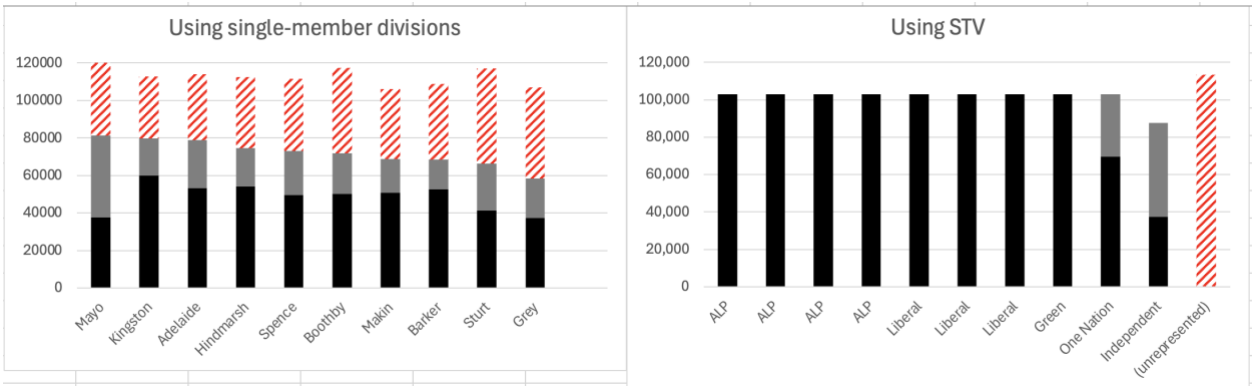
The composition of the House is fundamentally flawed because of the use of a system of single-member electoral divisions.

In my past submissions I have advised that the House should be elected by a *single transferable vote* (STV) proportional representation electoral system (as currently are the Tasmanian and ACT lower houses, the Senate, and several of the state upper houses). Many others call for the same reform.

To save space I won't repeat the text of these arguments here, but see 2022 submission (p. 8-17), 2021 submission to the WA electoral review, 2019 submission (p. 5-8), 2016 submission (p. 9-13), and 2013 submission (p. 4-19 and 39-45). (*Links on page 1 of this submission*)

Let me just here highlight one key perspective on the problem caused by single member divisions, which is that *they cause a large proportion of voters to not be represented in the House at all*.

The following charts illustrate the issue. The example presented is the result of the recent 2025 election in the 10 divisions in South Australia (L), and alongside it the outcome that would have very likely resulted from using the same votes filtered through an STV voting system (R).



In these charts the black solid component of the columns represent first preference votes for elected candidates. The grey components represent ballots where a voter's preferred candidate was eliminated, and a lower preference had to be resorted to, and contributed to a candidate being elected. The red hatched components of the columns represented ballots (that is, voters) who went unrepresented.

In the left-hand chart, under the existing system of ten single-member divisions, 43% of formal voters obtain a representative in Parliament who was their first preference choice. A further 21% had a lower preference ranking on their ballot counted in determining a member of the House – at best, a form of partial representation. 36% of votes did not result in electing a representative.

In the right-hand chart, had an STV voting system been used, around 82% of ballots would have resulted in a representative who was, at the minimum, a member of the party of the candidate receiving their first preference vote. Only 7% of ballots would have been used to determine an elected member from a different party or independent candidate using the voters' lower preference rankings. And only 10% of voters would have cast ballots that failed to elect them a representative at all (shown in the far right-hand column, which represents the sum of votes for the 11th-placed candidate, plus ballots which exhausted). (Using the results data at this election for this illustration, Labor would have won over 4 quotas, the Liberals just over 3 quotas, and the Greens over 1 quota, so their columns are shown as all first-preference votes; the final two seats have been allocated to One Nation and an independent based on some reasonable assumptions of preference flows.)

I have used South Australia's results for this illustration because a set of 10 seats is about right for an easy-to-grasp graphic on this page. But the example actually flatters the single-member divisions chart, because 6 of the 10 South Australian division results in 2025 has 2PP win margins of greater than 60%. Had the cluster of election results been more marginal, the 'represented' proportion would have been significantly lower, and the unrepresented proportion of the left-hand chart would be even higher – well over 40%.

Note that the illustration above displays a second major fundamental benefit of using STV; not only does using STV mean that *far more voters are directly represented*, but also that for the large majority of them, they are represented *equally*, in that their ballots elect MPs via the identical quota of votes. It is this that creates 'equal vote value'; making single-member electoral divisions have roughly the same population of voters enrolled in them has very little to do with giving votes equal value.

Other key virtues, such as ensuring representation through a greater range of voter-supported political parties, and having the effect of greatly increasing choice, are also inherent in STV electoral systems.

Single-member division electoral systems result in 3-4 times as many voters failing to secure representation. Single-member systems are *mechanisms for preventing representation*, not for creating it.

No-one ever designed a single-member division electoral system rationally to be a good way of choosing parliamentary representatives. Single member divisions were not an ancestral part of the English-British parliamentary model, even in its pre-democratic days.

At the expanding margins of the Canadian (1790 onward) and Australian (1850s onward) colonial settlements, single-member divisions had a justifiable place for electing representatives from emerging localities with small populations.

Single-member divisions found another arguably justifiable place in the reforms to the manner of electing members of the United States House of Representatives in the 1840s, but only in direct contrast to the existing even worse approach of multiple-member 'block voting'.

Single-member divisions, as a universal approach, in combination with the modern reality of party-based politics, emerged as part of a pragmatic (and very partisan) compromise between the two major parties of Britain, in 1884. 'First-past-the-post' voting was born of a dodgy partisan deal, which explains why it acquired a nickname based on a clearly dishonest form of horserace betting.

Nor has the problem of lost representation from single-member divisions been fixed by Australia adopting *preferential voting*, as we subsequently did. Preferential voting is certainly a good thing (it was originally proposed as an essential element of STV voting system, not for single-member divisions); it allows much stronger voter choice, and with it the capability of new parties and movements to form and offer themselves to the voters. And as the charts above show, preferential voting allows an additional degree of representation in parliamentary chambers elected using it. But preferential voting *alone* is not enough to make an electoral system well-representative.

Recomendation 1: JSCEM should recommend comprehensive reform of the composition of the House of Representatives at future elections by the adoption of election of members by STV proportional voting.

2. Increasing the length of the House term

The issue of the length of the term of the House is raised in the Minister's reference.

It is worth briefly reciting the history of term lengths. Until 1694, the English House of Commons had no expiry rule. A House was summoned at the monarch's pleasure, and was regarded as their creation – hence the surviving language of 'summoning' through 'writs'. Such houses could continue indefinitely. A House was dissolved only when the monarch directed so, but also whenever a monarch died (with the new monarch summoning a new House when they wished). After the Revolution of 1688, when the character of relationship between the Parliament and the monarch underwent significant change, the parliament legislated for the House of Commons of England to endure no longer than 3 years. In 1715 the House of Commons of Great Britain (as it had then become), recently elected with a powerful Whig majority, voted to extend its own term length to 7 years, and that maximum length endured through to 1911, when it was reduced to 5 years.

By the period when parliaments for responsible government were being established in the Australian and New Zealand colonies in the 1850s, the 'septennial' rule was widely considered too long and undemocratic. By then the United States House of Representatives existed, with a 2-year limit. The democratic Chartist movement had demanded 1-year parliaments (unsuccessfully). For the new colonial elected lower houses, maximum terms of 5 years were set, but in the decades that followed all of them were deliberately shortened to 3 years. The call for 'triennial parliaments' was a democratic impulse; three-year terms would ensure that the assemblies were relatively fresh and therefore composed of members elected with more recent political issues in the voters' minds, in turn making the executive governments more responsive to the public's mood. The tension of principles was between the idea that the elected chamber should strongly control the executive, so as to make it more responsive to the political mood of the electorate. The alternative view for longer parliaments was associated with those holding the executive power, and keen to keep hold of it for the longest time possible.

Those drafting the Constitution during the 1890s proposed the then standard practice of a maximum length of 3 years. Only the colony of Western Australia, established in 1890, had started life with a 4-year maximum term. During the 1897 session of the Constitutional Convention the WA Premier Sir John Forrest, dominant over his own colonial parliament throughout its first decade, pushed for 4-year maximum durations for the proposed House, but his change did not attract support, was expressly rejected at a key vote, and eventually disappeared.

The proposal has returned in modern times. Over the decades, executives in power seeking longer and more secure tenure have one by one changed the state electoral systems on this point, and all states and territories now have 4-year terms. But changing the Commonwealth House term would require constitutional amendment, and the attempt triggers collateral issues such as what to do about the Senate terms. Three national referendum proposals from 1974 to 1984 were mounted to attempt to align House and Senate elections, but all three efforts were defeated by the voters. A referendum to make the maximum term of both the House and Senate be 4 years, and elections be at simultaneous and (in practice) fixed terms, was for a 4th time put to the electorate in 1988. This also was comprehensively defeated, wining just 32.9% voter support, and with voters in no single state giving more than 36% support.

Yet the proposal for 4-year maximum or fixed terms lives on in the desires of a variety of governing political parties, commentators and business interests.

The debate really takes place within the context of the many attempts over time for executive governments to increase their dominance over parliament, and conversely reduce parliament's capacity to enforce responsibility on executive governments.

The argument always raised for the benefit of 4-year terms, fixed terms, and the combination of the two is that it will allow government to be fortified in terms of security of tenure, and freedom from public opinion, when mounting unpopular policy changes. Mention is always made of governments 'needing time' to implement policies, and of the apparent impossibility of introducing 'good' policies or 'governing well' as an election approaches. Thus, the less frequent elections are, the better government policy and performance will be over the longer term – because governments will be more able to ignore public opinion that disapproves of their policy or performance.

There is something deeply contrary to the concept of responsible government, indeed quite undemocratic, about this argument. It conceives of allowing the most possible time for governments to implement 'necessary but unpopular' measures, before entering a pre-election period in which they regretfully are forced to do things to please the electorate. In essence, this argument directly contradicts the basic principle of responsible government, that continuous accountability to a representative assembly, and through that to the People who have elected the assembly, is *the fundamental force* that should constantly act on executive governments. The argument for 4-year/fixed terms leans heavily on making structural arrangements that assist executive governments to *avoid* that force from acting upon it. In this framing, governments ought be allowed to get along with governing in their own terms, including in 'unpopular' ways, for as

long as possible. Should public opposition to a government emerge, it should be kept at bay. The whole argument stands in complete defiance of the principles of responsible government.

I note the submission to you this cycle by a '4-year terms' organisation, which attached a consultant analysis which makes a further claim; that four-year terms would bring financial and economic benefits. The point about less public expenditure over the long term does not hold much weight; the same public funding would be available for other expenditure, and both would equally contribute to the circulation of public finance in the economy. The wider economic-benefit argument has two large flaws. Firstly, the methodology is pretty unconvincing as an attempt at scientific calculation of complex factors. But more importantly, what is proposed is essentially a policy-preference claim, that certain economic policies, which appear to be largely about business investment interests, will accrue if the democratic force of popular representation can be kept at bay for longer. There is a lot of room here for self-interested economic influence to be at work. In any case, in principle, and contrary to the above position, the economic policy of the Australian government over time should be one which is responsive to the representative parliament. Governments should bear the burden of persuading the parliament, and the public, of the wisdom of their economic policies.

The above are issues of principle, which suggest the need for a lot of caution in any structural change which hinders the effective operation of *responsible government*. After 30 years of work in various aspects of public life in and around parliaments and governments, I remain unconvinced that the supposed gains of longer-term parliaments in terms of policy implementation are real. The idea that desirable policy implementation cannot be achieved in 2.5 years, but needs 3.5 years, from the preceding election does not match the realities of most aspects of governance. Only a small number of issues of policy reform are entirely tied to the electoral cycle or to election promises, and they are only so if political leaders choose to make that so. The great bulk of government work, performance, and even policy change is a continuous process.

For 125 years the Australian Government, under various leaderships, has implemented and achieved many things using a structure which has seen an average House term of around 30 months. It can continue to do so.

If the House had 4-year terms now, government would likely be very similar to the situation now with 3-year terms. Given the current terms of the Constitution, the 4-year House term proposal is a tricky constitutional reform with difficult consequential side-effects. To date it is supported by pretty weak claims of benefits, and by some arguments that are in direct defiance of the concept or responsible and representative government. The proposal has a high chance of failing at a referendum, and the exercise would dissipate the political capital of a government that seeks it. In all the circumstances, I recommend that JSCEM not advise that this idea go forward.

Recomendation 2: An attempt to change the Constitution to give the House maximum terms (or fixed terms) of 4 years should not be advised.

3 Fixing the term of the House

Another matter raised for this inquiry is whether the term length of the house should become 'fixed'. This might happen with either 3-year terms, or 4-year terms.

The table below sets out the current position in the parliaments across Australia, with New Zealand included for comparison (given the close history).

In short, the variations of model currently used in Australia are:

- The 'classic model' (in the Australian and NZ national houses, NSW and Tasmania) where there is a variable but time-bound *expiry date* for the term of the house linked to when a term commences.
- A different 'fixed terms' model in the other jurisdictions (Victoria, Qld, SA, WA, ACT, NT) which sets an *election date*, always expressed as a Saturday in a named month.

- Another key difference is whether there is a general discretion for the government, and/or the Governor-General or Governor, to dissolve the house on their own initiative (Aus, NZ, WA, and Tas), or whether an early dissolution can only happen in defined circumstances (NSW, Qld, SA, ACT, NT).
- Victoria has an awkward arrangement where there is no capacity for any early election.
- WA has an alternative solution, where the *upper house* election is the one that is constitutionally fixed, but with a linkage that causes a lower house election on the same date (but does not rule out an early lower house election).

Table 1: term lengths, fixing of election timing, and dissolution arrangements

<table>
<tr><th>State</th><th>Expiry of house</th><th>Regular date of election</th><th>Provision for early dissolution</th></tr>
<tr><td>Western Australian Legislative Assembly</td><td colspan="2">Elections for the state Legislative Council are to occur on the 2nd Saturday in March every 4 years. In February of such a year the Legislative Assembly is dissolved, and Assembly elections are to occur on the same day as Council elections.</td><td rowspan="4">Governor or Governor-General may dissolve the house early:
– on the advice or the Premier/Prime Minister
– but alternatively on their own discretion if the government has lost the confidence of the house</td></tr>
<tr><td>Australian House of Representatives</td><td rowspan="4">Constitutionally set time-bound limit for the expiry of the house</td><td>3 years from the date of the first sitting of the House following the last election</td></tr>
<tr><td>New Zealand House of Representatives</td><td>3 years from the date of the return of the writs for the last election</td></tr>
<tr><td>Tasmanian House of Assembly</td><td>4 years from the date of the return of the writs for the last election</td></tr>
<tr><td>New South Wales Legislative Assembly</td><td>1st Saturday in March in 4th year following last election</td><td rowspan="5">Government cannot initiate early election at will; Governor may dissolve the house only if:
– no-confidence motion is passed, and no motion of confidence is passed, and Governor considers that no government can be formed
– motion of confidence is defeated (SA)
– Assembly rejects/fails to pass an appropriation bill
– Assembly rejects/fails to pass ‘bill of special importance’ (SA)</td></tr>
<tr><td>Queensland Legislative Assembly</td><td rowspan="5">The date for the election is fixed in the state constitution (Commonwealth law for the territories)

(Emergency provisions for shifting election date in case of Commonwealth election or natural disaster)</td><td>Last Saturday in October in the 4th calendar year following the last election</td></tr>
<tr><td>South Australian House of Assembly</td><td>3rd Saturday in March in the 4th calendar year following the last election</td></tr>
<tr><td>ACT Legislative Assembly</td><td>3rd Saturday in October in the 4th year following the last election</td></tr>
<tr><td>NT Legislative Assembly</td><td>4th Saturday in August in the 4th year following the last election</td></tr>
<tr><td>Victorian Legislative Assembly</td><td>1st Saturday in November nearest to 4th anniversary of last general election</td><td>No provision for early dissolution</td></tr>
</table>

The arguments for the convenience (and security) of executive governments raised for *fixed* terms are similar to those raised for *longer* terms. But as with the discussion above of the length of terms, behind this issue lies a conceptual question as to the relative dominance of the parliament or the executive. The problem with term fixing is that it undermines the principle, inherent in the very idea of responsible government, that the executive is *continuously* accountable, and specifically continuously *vulnerable*, to the oversight of the house.

Amid a range of ways that executive governments have managed to reduce parliamentary oversight over the centuries, this one key step of controlling the security of the whole electoral cycle is a significant problem. Responsible government is intended to see the conduct, policy and performance of the executive government directly influenced by their continuous vulnerability. Term-fixing supports executive power at the expense of parliament's vital role.

Further, term-fixing hinders the effective resolution of a crisis of confidence in a government, which is available under the 'classic' model of unfixed terms. For a recent example, there has been turbulence in Tasmanian politics for several years due to the public not granting a major party a majority (or, doing so but the government losing it along the way). In the absence of the traditional options to dissolve a gridlocked house, a crisis may be prolonged. A case of this came close in Victoria in 2011, when a government with a one-seat majority lost a member's support; Victoria's even-numbered House composition (88 seats) and strict lack of an early dissolution procedure could have been a very significant technical problem, although in the event the matter came to be politically resolved.

One mischief of a different kind, often cited and certainly true, is the tactical advantage that incumbent governments (and sometimes specifically, heads of government) have in the ability to arbitrarily set the election date for partisan advantage. Related to this is the lengthy period of uncertainty about when the government will call an election. A solution to this would indeed be desirable. Such a solution can be crafted by increasing the embarrassment cost of a prime minister calling a tactical early election, without actually abolishing the options for dealing with a genuine case of a confidence loss in the house.

It should also be noted that given the wording of Constitutional provisions relating to the powers of the Governor-General, it is far from certain that legislation passed by Parliament even *can* fix the terms of the House.

If JSCEM is minded to support fixation of term lengths, I would suggest that the best of available models is in fact a variant of the WA case, with a semi-fixed date arrangement. The key element would simply be to provide in legislation for the *elections for the Senate to be set for (say) the first Saturday in May every third year* immediately prior to the expire of half-senate terms (or any other suitable calendar date.)

If that were done, the Prime Minister would face a very steep practical and reputation cost to advise dissolution and a general election for the House on any other date, because that would create two elections.

This arrangement would *not rule out the possibility* of the PM advising an early dissolution in the case of a serious conflict between the executive and the House, and/or the Senate, over a major policy dispute or political event (or, the Governor-General determining independently to dissolve the House following a government losing its confidence). A variant of these arrangements could provide that the Senate election date could be changed to match a sudden House election where such an event occurs in the final 12 months of a half-senate cycle, to avoid two elections. At other points in the cycle, the PM (or a political crisis) would have unavoidably triggered two elections, as occurred in the late 1960s (to general dismay).

The above suggestion is of course not strict *fixing*, but only *semi-fixing*. This proposal reduces the room for political advantage-taking, but does not eliminate it altogether. It is a compromise of the conflicting factors being weighed. The above is, however, also a solution that requires only legislation, not constitutional change, to implement.

Recomendation 3: If there is a mood to advise any form of fixing of the House term, it should be done through a careful compromise, possibly by fixing in legislation the dates for cyclical Senate elections, thereby greatly reducing the attractiveness to the Prime Minister of an arbitrary early House election, but leaving in place the options for an early dissolution resulting from the political relations between the Parliament and the Government.

4. Expansion of the House

The current Government clearly wishes to advance debate on the expansion of the House. The last JSCEM cycle prepared the way to some extent. Recent public debate and other submissions cover the key points, including:

- that expansion can be done by legislation alone, not requiring constitutional amendment.
- That the size of the two houses needs to expand together, unless there is a constitutional amendment to the 'nexus' provision.
- The direct mechanism is to pass legislation increasing the number of senators for each original state; the current constitutional and Electoral Act provisions will handle the consequences for the House.

The implementation of an expansion would not be trivial; expansion will require a redistribution in all 5 of the largest states. Current cycle redistributions are already underway in SA, the ACT and Tasmania, with Queensland pending. The length of time needed to carry a general expansion into effect needs to be considered. One option would be to legislate for it to have effect from *after* the next general election, giving the AEC the whole of the following term to carry the changes into effect. (This work could all be avoided if the system of single-member divisions was abandoned!)

Personally I am neither strongly for nor against the idea. I do think that arguments based on voter/MP ratios are a bit weak when they assert that an expansion will radically enhance voter access to MPs, improve the voter democratic experience, and change MP behaviour in any way. The majority of state systems with single-member divisions have much lower ratios now, and the political culture is hardly any different.

The issue of public opposition to 'more politicians', and to the cost, needs to be taken seriously. If this inherently unpopular thing is to be attempted, perhaps it could be combined with other changes that might represent a package of reform that can genuinely claim to make the House more democratic – such as changing the basic electoral system from single-member divisions to STV.

5. Composition of the Senate

5.1 The number of senators for the Territories

There are various proposals circulating in the past few years regarding increasing the number of Territory senators. My past comments on this are in my submission to the Committee's inquiry into the 2022 election (p. 16). In short, given its foundations in the Constitution, the Senate will never be a 'well-apportioned' chamber in terms of between-jurisdiction population-based equality. That being so the choice of the extent of territory representation will always be arbitrary.

If the two main territories were allocated numbers of senators on a population basis, they would have *fewer* places than is currently the case. Giving them more senators that the present number would seem to only aggravate the proportional unfairness of voter representation as between large jurisdictions (NSW and Victoria) and the small.

The Northern Territory may one day become a state, but in that event an arbitrary outcome for its Senate representation will also be legislated under section 121 of the Constitution. Some change to the future status of the ACT is also conceivable, although a specific Constitutional amendment may be needed. In either of these cases, or in the case of any other new states, the allocation of Senate seats will be for the Parliament to determine, without any binding rule.

The suggestion I made to the 2022 inquiry was that the number of territory senators be increased from 2 to 3. The reason for this is simply that *two* is a uniquely bad number to use in electing senators using STV voting, when combined with a strong two-party system, because it tends strongly to give each party a very high certainty of electing precisely one candidate, with very low odds of any other number being elected, and that fact creates an excessively safe seat, reducing competitive accountability to the electorate. Where three seats are available, each of two parties will more seriously back two candidates, and the question of which party might win two seats, and if only one, then which of two party candidates the voters would prefer, becomes far more competitive.

I appreciate that Senator David Pocock's election in the ACT in the past two elections appears to challenge this phenomenon, but in fact all it does is replicate it with a different pair of actors.

Having three places to fill would significantly alter the nature of the competition for territory Senate representation, could well result in the representation of a wider span of community opinion (ACT Liberal voters are currently entirely unrepresented in either house of the Parliament), and would do so at the price of only a modest increase in the overall jurisdictional malapportionment of the seats in the Senate as a whole.

Recomendation 4: Set the number of ACT and NT senators at 3, instead of 2.

5.2 Fix the Senate transfer counting glitch

In my submission to the Committee's inquiry into the 2022 election (p. 18-19), I repeated warnings others have made over the years that there is a serious (and undemocratic) mathematical glitch in the Electoral Act relating to the process of transferring preferences during Senate counts. It is known to technical specialists as the problem of the *'un'-weighted Inclusive Gregory* rule in respect of ballot transfer counting.

The current provisions of the Act have the effect of artificially increasing the weighting of ballots that have *already been part-used to elect one or more senators* relative to ballot papers that have not been used so. This creates a potential to change a result at later stages of the counting.

The flaw is inherently partisan, in that it boosts the value of ballots with preference rankings that to that point have supported large parties (in almost all cases, Labor and the Coalition) over all other parties (or ballot lists or ungrouped candidates) that have not yet during the count seen at least one candidate elected. At the late stages of a count, for the last 1-2 seats, it could materially affect which candidates get elected. As our political milieu sees more minor parties and independents poll well, the possibility of a result-altering incident increases.

It is believed that this error has never affected the set of candidates elected in any past Senate election, although the same flaw was calculated to have once affected an election result in a WA Legislative Council election. The WA legislation on this point was corrected some years ago.

If this glitch ever affects a Senate election result, the potential litigation may result in an entire state's count being voided by a declaration of the Court of Disputed Returns.

This glitch should have been fixed years ago. I urge the JSCEM to recommend an appropriate correction to the legislation.

Recomendation 5: Fix the 'un-weighted Inclusive Gregory' Senate ballot transfer glitch, before it one day crashes an election through a disputed result.

6. Introducing young voters into the electorate

Another aspect of the composition of Parliament is the extent to which all "the people" of the Commonwealth are involved in its selection. Since the 1970s it has been the law that all citizens over the age of 18 make up the voting electorate. Comprehensive enrolment of young Australians immediately after they turn 18 continues to be a challenge for the AEC.

A debate continues about whether people younger than 18 should also be voting. The debate is most often framed in terms of whether 16- and 17-year olds should *enjoy a right* to vote. Arguments for that conception are supported by many, and opposed by others. I support it.

But another way of viewing the issue is one of *best managing the process* of introduction of people of that age into the voting population. A key metric is that rates of enrolment and voting are clearly lower for people in the 18-21 cohort than for those who are older. The fact may well be that those who encounter their first election at ages 18-21, when a significant proportion of the cohort has recently moved out of home and are focussed on other life priorities, will be more detached from the electoral process than if they first encounter it at age 16-17.

I offer as a pragmatic revision to the law the following:

- Make electoral *enrolment* something that is comprehensively done at the end of Year 10 of school, when around 99% of kids are immediately present, making the data easy to capture; the administrative assistance of schools would itself be of great practical value.
- In the case of kids who leave school prior to the end of year 10 (or just generally), provide for *any* person reaching the age of 16 to be able to be enrolled.
- Insert in the Electoral Act a concept of voluntary 'activation' of enrolled young people's participation in any election or referendum that occurs prior to their 18th birthday.
- Provision could be made that 16- and 17-year olds, even after they activate, do not get fined if they fail to vote.
- Finally, to match the existing system, provide that activation occurs automatically when a person turns 18, and provide that when an election or referendum date is announced, any person who would be 18 on that date is also automatically activated.

The above approach would in practice provide for *voluntary voting* by 16-17 year olds. It would provide a phased-in entry of young people into the voting community, and could be linked with school-based civics education in years 10 to 12. The approach allows responsiveness to electoral events which occur during those few years of teenage lives. This approach would also assist the AEC in pre-empting and further eliminating the remaining current enrolment data gap for 18-21 years olds.

Recomendation 6: Establish a system of enrolling young Australians to vote from the end of year 10 schooling, and allow them to participate in elections earlier than age 18 should the opportunity arise, and should they wish to.

I hope this submission is of use to the Committee.

Malcolm Baalman